



**Before the
FEDERAL TRADE COMMISSION
Washington, D.C. 20552**

COMMENTS

of the

ANA – ASSOCIATION OF NATIONAL ADVERTISERS

on the

**Advanced Notice of Proposed Rulemaking – Rule on Unfair or Deceptive
Fees in Online Food Delivery Services
Project No. 267101**

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On behalf of the Association of National Advertisers (“ANA”), we provide the following comments in response to the Federal Trade Commission’s (“FTC” or “Commission”) Advanced Notice of Proposed Rulemaking on the Rule on Unfair or Deceptive Fees in Online Food Delivery Services (“ANPRM”).¹ Our members understand and support the Commission’s goal of providing consumers with clear disclosures about delivery fees for food and grocery services. The ANA helps to promote consumer clarity for such fees through the *ANA Ethics Code of Marketing Best Practices* (“Ethics Code”), which articulates industry best practices for transparency in pricing offers.² We appreciate the opportunity to comment on the Commission’s examination of “deceptive or unfair acts or practices involving fees and charges for food and grocery items ordered through online delivery platforms” and the costs and benefits of a rule addressing such practices.³

The ANA is the definitive voice of the marketing industry. Since 1910, we have set and advanced the agenda for marketing transformation, connecting over 1,600 member companies to an influential global network, insights and resources that drive growth. Our members represent 20,000 brands and \$400 billion in annual marketing investment. Through industry-leading research, the CMO Growth Council, and our proprietary Growth Agenda and Practices, the ANA empowers marketers to shape the future of marketing and create lasting impact for their organizations and the industry.

The ANA supports the Commission’s stated goal of ensuring food delivery pricing and fees are presented in a clear and understandable manner to all consumers. As the Commission considers whether to implement new regulations to achieve these goals, we urge the Commission to avoid unnecessary regulatory changes that could restrict consumer choice and disrupt competition in today’s market. Our comments first demonstrate how robust federal, state, and self-regulatory enforcement regimes already provide effective mechanisms to curb unfair or deceptive practices in the marketplace, making a new rule or broad updates to an existing rule unnecessary. Assuming *arguendo* that the Commission ultimately decides to pursue a new or updated rule, our comments encourage the Commission to seek limited changes that are narrowly tailored to address specific and prevalent unfair or deceptive practices within the bounds of the Commission’s rulemaking authority under Section 18 of the FTC Act. Finally, should the Commission propose rule changes, our comments highlight the importance of prioritizing flexible standards that preserve various business models and pricing structures that promote consumer choice and market competition.

I. Robust Regulatory Enforcement and Industry Self-Regulation Already Promote Clarity and Honesty in Food Delivery Service Pricing

The ANPRM asks if “a need [exists] for new rule provisions to prevent the potentially unfair or deceptive practices described in...this ANPRM.”⁴ The ANA and its members strongly

¹ FTC, Advanced Notice of Proposed Rulemaking on the Rule on Unfair or Deceptive Fees in Online Food Delivery Services, 91 Fed. Reg. 20381 (April 16, 2026), located [here](#) [hereinafter, ANPRM].

² ANA, Ethics Code of Marketing Best Practices, 6 (last modified April 30, 2025), available [here](#) [hereinafter, ANA Ethics Code].

³ ANPRM at 20386-20387.

⁴ *Id.* at 20389.

support transparency in pricing to consumers. The FTC’s own enforcement actions, bolstered by state and industry self-regulatory enforcement, demonstrate that strong mechanisms exist already that support such price transparency for consumers. These enforcement actions provide businesses with clear guardrails that signal specific practices that constitute impermissible conduct in this area. Continued enforcement under these existing authorities can help deter unfair and deceptive conduct related to food delivery fees without inviting the possibility of unclear or overly rigid requirements in a new or updated rule that could chill competition in the food delivery market.

As outlined in the ANPRM, the FTC has brought several enforcement actions involving alleged unfair and deceptive practices on food delivery platforms.⁵ For instance, in the past few years, the Commission has brought multiple actions alleging that various delivery platforms falsely advertised “free delivery” without adequately disclosing additional mandatory fees.⁶ In these cases, the FTC has leveraged both its authority under Section 5 of the FTC Act and Section 4 of the Restore Online Shoppers’ Confidence Act (“ROSCA”) to impose orders that promote clear and conspicuous disclosures for mandatory fees related to food delivery services.⁷ These actions demonstrate that the Commission already has the enforcement authority it needs to root out unfair or deceptive practices relating to food delivery service fees.

The Commission’s ample enforcement authority is further backstopped by vigorous state and local enforcement of allegedly unfair or deceptive conduct in the food delivery service space. Various states and municipalities have brought lawsuits alleging unfair or deceptive practices relating to food and grocery delivery service fees under their own laws and regulations.⁸ As noted in the ANPRM, these actions are further bolstered by private suits that target allegedly deceptive unfair or deceptive practices under state and local laws and ordinances.⁹ These actions, along with the Commission’s own active enforcement in this space, show that strong enforcement mechanisms currently in place provide regulators with sufficient tools to curb unscrupulous behavior related to pricing and fees for food and grocery delivery.

Industry self-regulation provides yet another effective mechanism to help ensure that consumers are presented with clear and understandable delivery pricing for food and grocery services. ANA’s Ethics Code has long provided the advertising industry guidelines that promote ethical best practices in advertising, including through provisions that call for clarity in pricing offers. Specifically, the Ethics Code states: “All offers should be clear, honest, and complete so that the consumer may know the nature of what is being offered, the price, the terms of payment (including all mandatory and extra charges), and the commitment involved in the placing of an

⁵ See *id.* at 20383.

⁶ See, e.g., Complaint, *FTC v. GrubHub Inc.*, No. 1:24-cv-12923 (N.D. Ill. Dec. 17, 2024), available [here](#); Complaint, *FTC v. Maplebear Inc. d/b/a/ Instacart*, No. 3:25-cv-10783 (N.D. Cal. Dec. 18, 2025), available [here](#).

⁷ See Stipulated Order, *FTC v. GrubHub Inc.*, No-1:24-cv-12923 (N.D. Ill. Dec. 31, 2024), available [here](#); Stipulated Order, *FTC v. Maplebear Inc. d/b/a Instacart*, No. 4:25-cv-10783 (N.D. Cal. Jan. 13, 2026), available [here](#).

⁸ See, e.g., Press Release, Office of the Mayor of the City of Chicago, *Johnson Administration Reaches \$18 Million Settlement With DoorDash Over Deceptive Business Practices* (Nov. 14, 2025), available [here](#); Press Release, Office of the Attorney General for the District of Columbia, *AG Racine Secures \$3.5 Million from GrubHub for Illegally Charging Hidden Fees, Using Deceptive Marketing Tactics to Boost Profits at Expense of Customers* (Dec. 30, 2022), available [here](#).

⁹ See ANPRM at 20385.

order.”¹⁰ ANA enforces the Ethics Code by working with companies to update their practices in line with the Ethics Code and, when such interventions fail, by referring noncompliant companies to relevant regulators. ANA has enforced the Ethics Code to enforce transparent pricing industry-wide, including by working with one company to resolve an issue involving shipping and handling charges for a “free gift.”¹¹ As part of this intervention, ANA emphasized that all conditions of the offer, including shipping fees, should be clearly and conspicuously disclosed for these types of offers.¹² These existing federal, state, and industry frameworks thus already work together to provide strong enforcement mechanisms that protect consumers, making additional FTC regulations for food and grocery delivery fees unnecessary.

II. Any Proposed Regulations Should Be Narrowly Tailored to Address Demonstrated Consumer Harms

If the Commission decides to update or implement a new rule, we encourage the Commission to propose regulations that are designed to address only specific, enumerated, and prevalent unfair or deceptive practices in line with the Commission’s Section 18 authority for issuing trade rules. For purposes of the ANPRM, the Commission refers to “online food delivery platforms” as any “online services that enable consumers to order food and beverage items from restaurants, grocery stores, and other retailers to be delivered to consumers’ homes, businesses, and other designated locations.”¹³ This broad definition could sweep in virtually any business that delivers any type of food or beverage product from an online order, including business models and delivery platforms that have no demonstrated history of engaging in unfair or deceptive practices. We urge the FTC to narrow the scope of any potential provisions to avoid imposing burdensome regulations on companies that already provide clear and transparent pricing options to their customers.

Specifically, the FTC asks whether delivery services covered by a proposed rule should “be defined to exclude certain methods of delivery (such as delivery by mail, private mail and shipping services, or freight) or applied only to certain types of deliveries (for example, same-day deliveries).”¹⁴ Any proposed regulations should apply to delivery methods and types with a demonstrated history of engaging in prevalent unfair or deceptive acts or practices with respect to delivery pricing. For instance, weekly grocery or meal delivery services, such as pre-packaged meal delivery boxes, provide consumers with clear and consistent subscription-model pricing. Consumers that sign up for these services receive reliable, convenient services in exchange for clear fees that were agreed upon at sign-up. Under these subscription models, consumers have ample time to review fees that will be charged before delivery, allowing the consumer to cancel their service for that week—or permanently moving forward—if the consumer no longer wants to pay the fee. A proposed rule or updates to existing rules should not be scoped to impose unnecessary and prescriptive additional regulations on mail delivery services such as these, which already provide consumers with meaningful opportunities to consider and reject fees before service fulfillment and delivery.

¹⁰ ANA Ethics Code at 6.

¹¹ ANA, ANA Ethics Compliance Report: January-December 2025, 49, available [here](#).

¹² *Id.*

¹³ ANPRM at 20381 fn. 1.

¹⁴ *Id.* at 20390.

Should the FTC decide to pursue additional regulations related to food and grocery delivery service platforms, any such rule must meet the requirements of the Magnuson-Moss Warranty-Federal Trade Commission Improvements Act, including that the FTC support its findings through information showing a prevalent and specific issue that the Commission seeks to address.¹⁵ If the Commission clearly identifies specific delivery methods or practices that are not adequately regulated by existing rules, narrow updates to address those specific unfair acts or practices could be appropriate. However, such updates should be supported by a demonstrated record of prevalent consumer harm to avoid imposing unnecessary obligations that could hamper businesses' ability to provide multiple delivery options, which support consumer convenience and choice.

III. The Commission Should Prioritize Flexible Standards that Account for Different Business Models and Pricing Structures

The Commission requests input on whether specific disclosures, such as itemized fees or all mandatory fees, should be included “before a consumer begins placing an order on an online food delivery platform.”¹⁶ A prescriptive rule that requires businesses to disclose fees *before* a consumer even begins placing an order would fail to account for the wide range of pricing models that businesses use in today’s market. Disclosure of total up-front fees before a consumer begins initiating their order may be possible under some models; however, such disclosures would be virtually impossible under more complex models that provide consumers with greater choice with respect to the delivery services they request.

For example, a delivery model that allows for significant consumer customization does not support such up-front pricing. Depending on an individual consumer’s preferences and the options that the consumer selects during the order process, additional fees could apply that were not included in the base price that was surfaced before the consumer began their delivery order. A consumer who is not in a rush to receive a food or grocery delivery may prefer to choose a discounted delivery price in exchange for a delayed delivery time. In contrast, a consumer who wants their delivery as soon as possible may wish to select options so that the platform will prioritize their delivery, resulting in a higher base fee than what was disclosed when the consumer began their order. In either scenario, a consumer may encounter a different delivery fee than what was initially presented. Even so, a more flexible pricing model with a variable delivery fee still benefits the consumer by presenting them with options that allow the customer to tailor their delivery experience to align with their service and pricing preferences.

Businesses should be able to continue to present these types of service options to consumers throughout the order process so that consumers can account for their own priorities and preferences. However, a prescriptive rule that requires fee disclosures before a consumer even begins placing an order could cut consumers off from such choices. A more flexible model gives consumers greater control over the delivery process and still supports robust market competition, as consumers can compare the final price displayed on different food and grocery delivery platforms before confirming an order. We urge the Commission to prioritize retaining

¹⁵ 15 U.S.C. § 57a.

¹⁶ ANPRM at 20390.

flexible standards that support multiple delivery models, which help to promote consumer choice and robust competition among delivery platforms.

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Thank you for the opportunity to submit comments on these important topics. Please do not hesitate to contact us with any questions regarding this submission.